Check the top box if your case involves parental responsibility or parenting time (custody/visitation rights), or relocation of a child. Check the other box if your case involves delinquent minor proceedings. If these don't apply, skip this section.

☐ **THIS APPEAL INVOLVES A MATTER SUBJECT TO EXPEDITED DISPOSITION UNDER RULE 311(a).**

☐ **THIS APPEAL INVOLVES A DELINQUENT MINOR PROCEEDING UNDER THE JUVENILE COURT ACT.**

ORDER FOR WAIVER OF APPELLATE COURT FEES

IN THE APPELLATE COURT OF ILLINOIS

Appellate Case No.:_____

Appellate District: _____

Enter the appellate court case number (if you have it) and the appellate district where the appeal was filed.

In re: _____

If the trial court case name began with "In re" enter that name.

Enter the case information below as it appears on your trial court documents.

PLAINTIFF/PETITIONER(S):

_____

First, Middle, and Last Name, or Business Name

☐ **Appellant** ☐ **Appellee**

Check the box to show who filed the appeal (Appellant) and who is responding to the appeal (Appellee).

v.

DEFENDANT/RESPONDENT(S):

_____

First, Middle, and Last Name, or Business Name

☐ **Appellant** ☐ **Appellee**

Check the box to show who filed the appeal (Appellant) and who is responding to the appeal (Appellee).

Enter the trial court info below for the case you are appealing.

Appeal from the Circuit Court of

_____

County

Trial Court Case No.:

_____

Honorable

_____

Judge, Presiding

Your Name *(applicant)*: _____

First *Middle* *Last Name*

STOP

DO NOT check any boxes or fill in any more blanks on this form. The court will complete the rest of the form.

The Appellate Court has reviewed the *Application for Waiver of Appellate Court Fees* and orders *(check 1, 2, 3, or 4):*

☐ **1. GRANTED – FULL WAIVER**

The *Application for Waiver of Appellate Court Fees* is **granted**, effective on the date the *Application* was first filed. The applicant qualifies for a **full (100%) waiver** and may participate in this case without payment of fees, costs, or charges because *(check A, B, or C)*:

☐ **A.** The applicant receives **means-based public benefits** under one or more of the following programs:

- SSI (Supplemental Security Income, not Social Security)
- AABD (Aid to the Aged, Blind and Disabled)
- TANF (Temporary Assistance to Needy Families)
- SNAP (Food Stamps)
- General Assistance (GA), Transitional Assistance, or State Children and Family Assistance

- OR -

☐ **B.** The applicant's personal income is **125% or less of the current poverty level** as established by the U.S. Dept. of Health & Human Services and the applicant's non-exempt assets under 735 ILCS 5/12-901 and 735 ILCS 5/12-1001 are such that the applicant is unable to pay the fees, costs, or charges.

- OR -

☐ **C.** Payments of fees, costs, and charges would cause **substantial hardship** for the applicant or their family.

☐ 2. GRANTED – PARTIAL WAIVER

The *Application for Waiver of Appellate Court Fees* is granted, effective on the date the *Application* was first filed. The court finds *(check one)*:

☐ **75%** of all fees, costs, and charges are waived. The applicant **must pay 25%** of all fees, costs, and charges because the applicant's available income is more than 125% but not greater than 150% of the current poverty level.

☐ **50%** of all fees, costs, and charges are waived. The applicant **must pay 50%** of all fees, costs, and charges because the applicant's available income is more than 150% but not greater than 175% (50% waiver).

☐ **25%** of all fees, costs, and charges are waived. The applicant must pay 75% of all fees, costs, and charges because the applicant's available income is more than 175% but not greater than 200% (25% waiver).

Income findings are based on the current poverty level as established by the U.S. Dept. of Health & Human Services, and the applicant's non-exempt assets under 735 ILCS 5/12-901 and 735 ILCS 5/12-1001 are such that the applicant is unable to pay the fees, costs, or charges.

Payment *(check one)*:

☐ The applicant must pay the fees, costs, and charges currently due by: _____
Month, Day, Year

☐ Upon good cause shown, the applicant may make payments as follows *(describe deferral, installment plan, or other reasonable terms)*:

_____

_____

☐ 3. CONTINUED – APPLICATION IS INCOMPLETE OR FACTUAL ISSUE

If the court determines that relevant sections of the Application are incomplete or there is a factual issue regarding the applicant's entitlement to a waiver, the applicant must be notified of the deficiencies and given the opportunity to amend the Application.

Relevant sections of the *Application* are incomplete or there is a factual issue about the applicant's eligibility for a fee waiver on the face of the *Application*.

The specific eligibility questions are:

_____

_____

_____

_____

_____

_____

The applicant must *(check all that apply)*:

☐ **A. File an updated (amended) *Application*** that includes the missing information listed above.

☐ **B. Provide documents.** These documents will **not** be included in the public court file.

☐ Submit documents. Instructions about when and how to submit are:

_____

Required documents are:

_____

☐ 4. DENIED - DOES NOT QUALIFY

The *Application for Waiver of Appellate Court Fees* is **denied.** The applicant does not qualify for a fee waiver because *(must state specific reason)*:

_____

_____

The applicant must pay all the fees, costs, and charges currently due by:

_____
Month, Day, Year

If *Application* was granted, this order expires one year from the date of this order. Fees, costs, and charges included in this waiver are: filing, service of process, publication, mediation, guardian ad litem, and all other fees listed in 735 ILCS 5/5-105(a)(1).

ENTERED:

_____ _____
Justice *Date (Month, Day, Year)*